

THE
NECESSITY OF DISINTERMENT,
UNDER EXISTING CIRCUMSTANCES,
BEING
AN APOLOGY, &c.,
IN
A LETTER TO THE MAYOR OF EXETER.
BY
WILLIAM COOKE, SURGEON.

"All foreigners express astonishment, when informed, that the teachers of Anatomy, in this country, are obliged to depend, for the power of communicating this most necessary and important knowledge, upon a precarious supply of bodies, which have been suffered to become putrid, and afterwards been interred. This is, indeed, a national disgrace; and formerly I would not willingly have acknowledged the fact of the disinterment of bodies, because it tends to disquiet the best feelings of the public. The newspaper writers, however, have so blazoned it forth, as to render any attempt to conceal it unavailing."

MR. ABERNETHY.

LONDON:
PUBLISHED BY SHERWOOD, GILBERT, AND PIPER,
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Mills, Jowett, and Mills, Bolt-court, Fleet-street.

AN APOLOGY, &c.

SIR,

Actuated by a respectful deference to the chief magistrate of the city of Exeter, I venture to address that individual, who so ably occupies the place and station, at the present moment. After the remarks which fell from Mr. Justice Park upon the subject of local jurisdiction at the late city assize,—remarks which no one in court, and least of all yourself, can possibly have forgotten,—there can be no occasion for my referring to the subject, for the sake of any explanation of my conduct, in procuring the removal of my past cause into an adjoining county.

You know, I presume to think, Sir, that it is difficult for men even of enlarged minds to divest themselves of opinions once formed,—perhaps publicly declared.—Rumour has a thousand tongues, and prejudice catches every whisper;—is it fair then, that I, or any one else should be tried by a jury who could by any possibility prejudge the question? Otherwise, the amount of evidence adduced, would be but too frequently a secondary consideration. Jurymen at least might come into court with prejudiced minds; and though magistrates of talent and character, might, undoubtedly, be very far from casting “the trash their own suspicion breeds, into the scale they hold,” yet it would be superfluous to inform you, Sir, that the mischievous operation of bias and prejudice, need not extend further than the jurybox, to annihilate every shadow of fair and impartial justice.

I do not conceive any farther explanation necessary, Sir, after the forcible remarks of the learned judge to the same effect; and if any apology seem to be called for, I beg that it may be considered as consisting in that explanation which was so appositely provided.

The objects of this letter, Sir, are various: for, after having implored your forbearance, as to the liberty I have taken, in placing your distinguished name in its title page, I would, with your permission, draw your attention to the circumstances of my late prosecution. I would, secondly, apologize for some particulars connected with the case. Thirdly, I would venture to attempt a demonstration of the necessity and advantages of anatomical pursuits. And, fourthly, endeavour to convince you, that something to facilitate the acquisition of subjects *ought to be done*, and that something *is about to be effected*.

The dead body of a poor woman was taken from a grave; and with such a seeming recklessness of consequences, that no steps appeared to have been taken to prevent detection, and, I had almost said, less than none to shield public and private feelings from the grossest outrage. Under such circumstances, was it not the duty of the parish officers to search for the body, to re-inter it, and to punish the offenders? Certainly; and had that appeared to have been their only aim,—had they temperately removed the body, and then indicted me (as it was found in my possession) for a *misdemeanor*,—I should not have thought of changing the *venue* of the late trial into the adjoining county. But, the desperate proceedings of my prosecutors alarmed me, and induced me to resolve, that I would not be tried by men who seemed actuated by a sort of fury. Nemesis, or some of the destinies of Arimanes, seemed to be employed upon them, and to be working almost as monstrous evils, as when they

“From the dull,—
Do shape out oracles to rule the world.”

I need not inform you, Sir, but I am anxious to explain to the public, that *four* constables were sent to my house, as if some strong opposition had been expected, or as if there was reason to apprehend murderous proceedings. The body was found, identified, and quietly surrendered, and, I believe, there were no particular marks of violence upon it. I was conducted to the Guildhall, as I supposed to account for my possession of it; and this I was prepared to do. The usual proceedings were gone through with no lack of that awful gravity which suited with the case, and after the ordinary forms. The body lost was found, and that in my possession, so that every thing seemed clear and satisfactory, and one would have thought facts enough had been substantiated as a foundation for future proceedings. But,

it occurred to a person present, (*evidently in office,*) that certain valuable effects, such as gold rings, and crosses of gold and jewellery, together with (it was impossible to say what of) needlework and fine linen, might, *very probably*, have been interred with this poor woman; and although this *brilliant* suggestion, I dare say, seemed worth very little to the intelligent bench of Magistrates, (one, two, or three of whom saw it in its true colours, and smiled upon the officious zeal of the officer,) yet as it came from a quarter to which they were accustomed to pay respect, they did not think it right, I suppose, entirely to overlook it. It was replied to the proper question on this important subject, “There is some linen missing,” and although it was, or very well might have been, presumed, from the silence of the witness, that no treasure had been interred with the body, or that it was safe and untouched if it had, yet, (by a majority, I suppose,) *it was thought advisable*,—and my indignant feelings compel me into seriousness when I relate it,—*to send officers a second time to my residence, to search for stolen linen*, which must necessarily have been of the most ordinary description and utterly valueless, but *upon the finding of which*, some absurdly thought, *I might be indicted for felony, and thereupon committed to prison*. I am acquainted with those, Sir, who hoped for this result; *nay, with one in office, who was heard to express a resolution, ready formed, and that before the examination of a single witness, that it should be brought about*. I know their names, and may let the public know them too. They are deeply enough implicated already, and let them beware lest fresh exposures tread upon the heels of their precursors. Linen was found and identified, and it was of about twopence value. It is true my very ingenious and able Solicitor, Mr. Brutton, after some difficulty, succeeded in convincing you of the non-existence of any virtual felony, (as was shown by your admitting me to bail upon moderate securities,) yet, could no arguments of Mr. Brutton, or of a few gentlemen who steadily opposed their rancorous proceedings, abate the fury of certain individuals of the Parish of St. David. These persons, catching at the hint profoundly thrown out in the Chamber, instructed counsel, not only to proceed against me for the misdemeanor, (to which, as I had possession of the body sought, I would have pleaded guilty immediately,) but to lay an indictment for felony also,—an indictment, charging me with a disgraceful and heinous offence, which *they knew I never did or thought of doing, and which I indignantly throw back on my accusers, one and all, collectively and individually*.

Neither need I inform you, Mr. Mayor, who, though yourself a parishioner, are, I am sure, as a magistrate, and a gentleman, strongly opposed to any such malicious proceedings, that parish meetings were called again and again, during divine service, (being considered, I suppose, a part of it,) for the purpose of supporting this double indictment, the expenses of which, it was even proposed to defray by a rate upon the parish! In justice to that parish, however, I am bound to admit, that the proceedings of these meetings, both originated with and were conducted by obscure individuals. Some of the more respectable parishioners were ignorant of the *first* meeting, till its resolutions were made known to them; resolutions to prosecute me for a felony, which, but for this *accident*, would never have been adopted. This is evidenced by the opposition with which these gentlemen met all subsequent proceedings: so that I repeat, it is but justice to allow, that, though outvoted continually, the conduct of these gentlemen, in the estimation of the liberal minded, will half redeem the character of the parish. They will be justified by that approval of their exertions which was implied in the conduct of Mr. Justice Park, when he declared that he should be very sorry to try such an indictment, and gave directions to the jury accordingly: and again, by the express declaration of the Court of King's Bench, through Mr. Justice Bayley. But these gentlemen *were* outvoted, a subscription was entered upon, and the originators of this unfounded indictment triumphed. But, Sir, was I to be tried by such men for a felony? Tried, I say, because it is more than probable, that some of those who met to prosecute, would have sat as jurors upon the trial; and then, Sir, what could have been effected but a ready-made verdict, and the severest punishments. I confess that I trembled under such an apprehension, and caught with avidity at the remedy proposed by my solicitor, that I should remove the cause into the Court of King's Bench. The matter being thus carried to London, this indictment for felony was smiled upon as a jest, or spoken of as a mistake, by most persons to whom it was mentioned. In one instance, a mistake indeed, and of some consequence, had very nearly arisen from its unusual nature. A legal gentleman, perceiving that it was a charge of disinterment, and no more expecting an indictment for felony than one for high treason, neglected, for some days, to inform me that it was necessary I should plead to so serious a matter in person. A general exclamation of surprise and merriment attended its relation; except in some persons, who conceived it too serious a piece of malice to be met in any

other way than by indignant deprecation. For my own part, I was content: I felt assured of the view which an enlightened judge would take of the subject; that he would overrule so ridiculous a complaint, as that a medical man, of no bad character, had stolen some old rags of a few pence value, for the purpose of using or selling them: and in this *intent* only, as is manifest to common sense, consists the essence of felony.

Sir, you are acquainted with the judgment of the Court of King's Bench, as, doubtless, my prosecutors are also. Can I not easily imagine, or rather, may I not positively infer, the poignant chagrin of those personages, upon finding that I had been more leniently dealt with than they had hoped. Will they deny that *imprisonment* was the doom which their best wishes had assigned me; and will they, after six months' persecution, pretend, that there was the slightest leniency in their inclinations? Not that I mean to say that my sentence was light: much the contrary. I lament it, not only on my own account, but from a consideration of the baneful effect which it *may* have upon those numerous and ardent minds, who are either prosecuting, or about to prosecute, their important studies. But, *nil desperandum*: nothing, Sir, no prejudices, no misguided and self-injuring prosecutors, and (pardon me if I say) no magisterial interference, can check the ardour of anatomical students, any more than bigotry, pride, or timidity, (whichever be the motive of its opponents,) can shut that broad gate, which is opening, and will be opened wide, for the diffusion of universal knowledge. It is cheering to reflect, that in the very teeth of this conviction and sentence, and only a few days subsequent to the latter, when it must have been fresh in mind, and doubtless had been seriously pondered over both by teacher and pupils, Dr. Birkbeck, in a course of Anatomical Lectures which he was then delivering to the Mechanics of London, having arrived at the precise point whereat my difficulties arose, proposed to his class to exhibit to them the muscles upon the recent subject: by which alone, as he explained to them, they can be properly shewn. He referred to the prejudices which prevail against practical Anatomy, and professing an inclination to indulge them, should they be paramount to the general desire of knowledge, he promised, rather than disgust his audience, to continue his course (in a very imperfect manner certainly, but as well as he could) by the aid of plates, diagrams, &c. Dr. B. left it with his large audience to determine the point, when they, with an honourable unanimity and readiness, accepted the offer of the

recent subject, with acclamations. The subject was produced in accordance with their good resolutions, and the course has proceeded regularly, not only without disgust, but with that genuine delight which accompanies *perfect* information. Thus has Dr. Birkbeck accomplished that object in the acquisition of which I should have preceded him, (though in a very humble manner as to the Lecturer, yet with the proud and pleasing advantage of addressing professional, literary and scientific men with regard to the audience) but for Yarde's direct disobedience to very plain and positive orders. Dr. B. is a champion of science and education, but not such only; he is a true and an enlightened patriot. He is teaching his countrymen "the *task of greatness*," as well as "the path of honour;" and, what is perhaps of more moment than either, he is teaching them to be happy. "Hæc studia adolescentiam alunt, senectutem oblectant, secundas res ornant, adversis perfugium ac solatium præbent, delectant domi, non impediunt foris, pernoctant nobiscum, peregrinantur, rusticantur. *Quod si ipsi hæc neque attingere, neque sensu nostro gustare possemus, tamen ea mirari deberemus, etiam cùm in aliis videremus.*"—CICERO.

So much for the prosecution: and having been acquitted as a matter of course, of the obnoxious part of the charge, by a *jury of common sense*, as I have ever been by those who can appreciate the motives of a student of science and the feelings of a gentleman, as well as at that bar, which is to every man of honour as tangible and as terrible as that of any Guildhall in Europe, the bar of my own conscience; having, I say, passed unhurt through that ordeal which my prosecutors presented to me, and through that which they ought sometimes to impose upon themselves, (on Sundays at least,) I can but say in return, that I am equally obliged to those who followed up, and those who suggested, that unique indictment. I regret only, that all its details were not cited in open court, in order that the deep malignancy, and the entire impotency of the originators might have appeared in ludicrous opposition, face to face; and that my own name, of so small consequence as it is, *per se*, might have borrowed a moment's lustre from its proximity to so black a foil. "Let them digest the venom of their spleen," and beware, lest some harsh-sounding truth teller apply to them the lines of the Satirist,

"Compound for sins they are inclin'd to,
By damning those they have no mind to."

They will smile at these remarks because they are unsupported by any authority. But these gentry *may* receive a graver and heavier rebuke; such as, from its eminent and official source, shall convincingly teach them, that to conspire against the future prospects of any man, by raking up a groundless charge of felony against him, when his character is untainted, and his pursuits *even in the imputed felony* are useful and honourable, is *in itself* so very *contemptible*, and yet so *heinous* an offence *against common society*, as to require a *direct rebuke from the Chief Magistrate*, and to deserve that severe punishment which would follow an action at law. Give me leave, Sir, to request (if, indeed, in acknowledging your authority, I am not rightly entitled to demand) that you will, at some convenient opportunity, signify to my prosecutors, (whose legal superior and whose fellow-parishioner you are) your strong sense of the impropriety of their conduct. You cannot be in error, for you are preceded by the voice of Mr. Justice Park, and by that of the Court of King's Bench, and you will be echoed by the loud and equitable cry of the public in general. Pardon me, Sir, if I press my solicitation upon this point, as firmly as courtesy will allow me; probably, however, it needs only to be mentioned.—As a man you will be indignant at such shameful proceedings, and as a magistrate you will feel it your duty to reprove them.

Can there be a gentleman, can there be a scholar, can there be a Christian, among my persecutors? Gentlemen scorn dishonourable actions, scholars are liberal toward science and the students of it, and Christians are just at least, being commanded not to “bear false witness against their neighbour.” Can they possibly, can *any learned individual* among them, find texts to justify the accusing a man of a disgraceful offence, when he knows that none has been committed? There is that, however, which “makes all doctrines plain and clear,” and it is the duty of every man to acquire popularity—his interest at least—and if his interest, then his duty: because, if it be the duty of a citizen to promote the *general* good, how can he do that in a readier way, than by promoting his *own* good? For, the whole consists of parts, and he is, undoubtedly, a part of the whole. Wherefore, by consulting his own individual good, regardless of irrelevancies, (for such, in this scholastic view of things, honour and honesty must be allowed to be,) a man is evidently, and *bona fide*, playing the part of a good citizen. This is perfectly clear. It appears an irrefragable syllogism, as fair as some of ours

in physic, perhaps as some of yours in law. For *Divinity*, I have not a word to say about it. I leave it (*and the present argument too*) in the pastoral hands of *any Divine who may have already busied himself in it*. Is it then, possible, some persons may inquire, who are less acquainted with the world and its hypocrisy, and with the officers of St. David's, than you, Sir, must necessarily be; is it possible that any Divines have so degraded themselves as to have excited or abetted these malicious proceedings? Yet, it should be remembered, that a desire of popularity will transform the noblest spirits, as, in the fable, it makes a lion pride himself upon the accomplishments of an ass. The post of "a door-keeper" is little desirable, whatever may be said about it, and the sentiment of the Devil has more admirers:

"Better to reign in hell, than serve in heaven."

Those who have been most active in the late prosecution, cannot have felt more real regret, than I have myself experienced. *My* uneasiness (whatever may have been the nature of *theirs*) consisted in a participation in the distresses of those persons, whose private feelings had been so deeply and (as I fear they supposed) cruelly wounded; and in the reflection, that the disgusting subject of human disinterment must be again agitated, commented upon, written upon; a subject which, of all others, whether relating to a necessity or not, ought to be kept profoundly silent, and almost mysteriously secret.

Upon this declaration, I proceed to state, that it is one of my objects in the publication of this letter, to make all the reparation I am able to the friends of the late Mrs. Taylor; assuring them, that I sympathize with them in those distresses, which must have arisen from the violence offered to some of the best of feelings, at the same time declaring, that the choice made (so far as I know, and as I believe) was entirely fortuitous, and by no means intended to affect their family particularly. It is my intention, moreover, by this letter, to apologize to the public in general, for certain imprudent conduct which has led to the late lamentable agitation of the public mind. "Nullum numen abest si sit prudentia." But after this acknowledgment I must be permitted to explain myself, and to show wherein I allow myself to have acted imprudently. To be fairly understood, I must beg permission to say a few words which would otherwise be entirely irrelevant. Having it in prospect to settle in Devon, (solely from certain

notions of its warmth and salubrity,) I determined upon Exeter as my place of residence, without any other knowledge of it than that possessed by every Englishman; viz. that it is a large and important city. It was represented to me as a place of enlightened and elegant pursuits, and upon this opinion a recommendation was founded, that I should offer to its resident gentry a course of Anatomical Lectures. In furtherance of this design, my friend, Mr. Wilton Toulmin, the originator of the proposition, held out to me the following very important inducement; that he could at any time purchase a subject from a certain medical school in London. This, from his influence at that school, I did not doubt for a moment. After some months I proposed my Lectures, by advertisement and by circulars; and having had abundant encouragement, I commenced them in October last, before an audience of about forty gentlemen of the greatest respectability. After the delivery of about ten Lectures, I arrived at the part of my course where it was necessary (as had been promised in the circulars) that I should exhibit the muscles upon the recent subject, and I made my application to London without the least doubt as to the result. After a few days, my friend (who is as zealous as persevering, and as able as any agent can possibly be) replied, that he had been refused in the most direct manner, and that the fact was to him quite inexplicable. He could not conceive the cause of it. Persons who were quite familiar to him, and whose business it was to act upon these occasions, replied steadily to every application, that an injunction had been laid against sending *me* a subject, and that it had been caused by some Exeter person or persons. Is it necessary, Sir, that I make any comment upon this manœuvre? It seems as if its ingenious author, who did me the honour of so much notice, determined to annoy me, and, if possible, defeat my object. To that end, he made himself acquainted with the place whence I intended to procure my subject, and then found means of spreading such stories as should influence its petty officers, box-carriers, beadles, porters, and the like, (for the head of that establishment is indignant at the transaction, and cordially promised me his protection,) so as to bring about that refusal, which (strangely enough) was so very efficacious. Having thus succeeded in driving me to the necessity either of discontinuing my Lectures, or of authorizing some disinterment upon the spot, this *gentleman* sat silently watching the event. None could be more fortunate. The resurrection-man seemed as if he had tacitly come into the gentleman's project; for, having provided me, not with a subject only, but

with some valueless linen also, to possess which, it was thought, would have made my misdemeanor a felony, the former, in the most obliging manner, enacted a dexterous and finishing stroke to the game thus played by the porters, box-carriers, and gentleman, in alliance. The man was paid for his trouble, and it was agreed that he should receive a second fee upon this sole and oft-repeated condition,—that he returned to the place whence he had procured the body, and destroyed every vestige of the transaction:—so, leaving the act “uninjuriously because unknown.” He promised, he solemnly promised, to do this. I had no reason to disbelieve him, and, reflecting upon the probable efficacy of his promised reward, I confidently hoped, that the feelings of relations and of the public would have suffered no injury. What really occurred I need not repeat. The man, I suppose, went off in some other direction, without making any effort at doing what it was his duty to have done, and (as I at that time conceived) that of no other person. Since that affair, however, I can readily admit that it would have been prudent, and in every respect proper, either personally, or by means of another, to have ascertained that the thing was really and decently done and completed. So far as I have said, I acknowledge myself to have acted imprudently; and so far, therefore, do I apologize to the public, and more particularly to the friends of the deceased.

Anatomy, however, must be studied. Is it possible that any one can doubt this? I am informed, Sir, that it *is* possible. But if this be true, I am sure the strange opinion must be held by those who never employed a thought upon the subject. Give me leave to recommend such persons to consult their medical attendants upon the nature and consequences of the following diseases,—aneurism, hernia, stone, cataract. Let them inquire, further, how they are to be remedied, and how frequent they are in their occurrence; and then, and thereafter, I pledge myself that their prejudices against dissection of the human body will have been lessened, if not overthrown.

“Anatomy,” says Mr. Abernethy in a pamphlet published on the occasion of the enlargement of an Anatomical Theatre, under the sanction of the Governors of a contiguous Hospital; “Anatomy forms the only basis on which the superstructure of medical science can possibly be built. We must understand the healthy structure and functions of the various organs and parts of the body, or we can never understand the nature of their diseases, nor the rational mode of effecting their cure.”

Here is a broad declaration from the highest authority, and comment would but weaken its effect. To the great majority of thinking men, it will appear as if I were going about to prove that pain was an evil, by advancing arguments in proof of the necessity of Anatomy. But I have good reasons for believing, that certain persons who talk loudly about the horrors of disinterment, are quite unaware of the nature or object of that science, which they would consent to sacrifice at the shrine of an ill-directed, if even a praiseworthy feeling. Let me ask these persons, whether, in the event of a painful and dangerous illness occurring to themselves or their families, they would not desire the attendance of that medical practitioner whom they believed to be skilled in his profession? If any one of them reply to this inquiry affirmatively, I beg of that individual to read again the sentence which I have just quoted from Mr. Abernethy. Dissection and disinterment are *both* forgotten and forgiven, when agony distorts the features of a beloved sufferer, or when death seems to be impending over him; and when that science which but for Anatomy (*and in the present state of things but for disinterment*) could not exist, is ready at hand to relieve from torture, or to snatch from death. On the other hand, how numerous are actions against surgeons merely for supposed want of skill in treating fractures and other cases, when the patient does not acquire that relief which he expects. Suppose I were exposed to an action from my prosecutors for ignorance in that science which they have just prosecuted me for studying, who would be more ready to prosecute than they?

Lest, however, our patients should delicately refrain from seeking information of their medical attendants, as supposing that they would be unwilling to betray the secrets of their *art and mystery*, let them be assured, that necromancy and juggling are not farther removed from the *practice* of medicine and surgery, than are reserve and mystery from that *theoretical* information, which every educated practitioner is, at all times, willing to afford. Permit me, Sir, to use this opportunity of detailing a case in surgery: a practice which, in my opinion, ought more frequently to be resorted to, as a means of impressing the public mind with a conviction of the value, *the indispensability*, of practical Anatomy.

There is a large artery on each side of the neck conveying blood to the head: of so great magnitude is it, that, could the murderer wound it by a puncture only, his business would be sufficiently done, without any further

division. A very small wound of this vessel would give vent to so many pounds of blood, in a few seconds, as would cause immediate death. Now this artery is subject to a disease called Aneurism, wherein its coats yield (perhaps on one side of the vessel) so as to form a small pulsating tumour. It is a membranous sac containing blood. It communicates with the interior of the artery, so that the contents of the tumour are easily squeezed back into the artery, whence, upon the removal of the pressure, the blood immediately returns into the sac. This tumour, gradually enlarged by the continuance of morbid actions, and by the impetus of the circulating blood, acquires, perhaps, the size of a large orange. The skin is in a constant state of increasing tension, and it finally becomes inflamed, and ulcerates, and the tumour bursts. After what was said of the size of the artery, I need not dwell upon the certainty of immediate death. The remedy consists in exposing the vessel between the diseased portion and the heart, (*i. e.* in the neck,) and closing it by applying a ligature upon it. This operation well performed, and under favourable circumstances, effects a perfect cure. But it is dreadful for any man to attempt it, (and there are many operations much more difficult,) without the most exact anatomical knowledge. It were far better that he allowed his patient to die *secundum naturam*, than that he presumed to hasten his death, by destroying him *secundum artem*. And, better were it many times over, that he experimented upon his own, than upon the throats of his unfortunate patients. Does he know the exact situation of the artery relatively to the deep parts about it? Does he know by what parts it is covered? Then let him proceed to expose it. It is surrounded by parts vitally important. It is in close contact with a great vein which partially overlaps it, and which is in continual motion. Should he wound this vein ever so slightly, the probability is that the operation is fatal; and yet, he has to separate it from the artery, and this at the bottom of a wound which is covered with blood. Important nerves environ the artery, and to include one of them in the ligature with it, would be as certainly fatal as to injure the vein. Suppose a dexterous man and an anatomist to be the operator: he leaves these important parts uninjured, because he knows their situation, and that of all the parts concerned; also, because he is calm and collected, from a consciousness of his own resources. He exposes a portion of the artery, he conveys a ligature around it, and his patient is safe. Suppose, again, that the operator, from a delicate sentimentality, has held disinterment to outweigh, in horror, any good that can arise from it, and has

neglected to study Anatomy, lest he should encourage this “disgusting traffic.” Imagine this philosopher encountering these difficulties at the bottom of a bleeding wound. He cannot find the vessel at all, perhaps, before he has divided it, and a fatal gush of blood informs him of the result of his temerity. Or, he opens the vein, he divides some of the nerves, or he ties them up with the artery. It is all the same. He might as well have laid open the original tumour, and thus have killed the patient at once.

That man’s prejudices against Anatomy, Mr. Mayor, *and even against disinterment*, must be rooted indeed, who, in the face of such facts as these, would still oppose himself against some slight sacrifice of feeling, to secure such important advantages as anatomical knowledge has been seen to confer. But, Sir, *the law requires of medical men that they be Anatomists*. It is illegal to commence practice before obtaining the certificate of the Society of Apothecaries; and the candidate for this necessary credential is required to bring proofs of his having attended anatomical lectures, and is then examined as to his knowledge of Anatomy. Mark, therefore, Sir, I beseech you, the dilemma in which we stand. *It is illegal to obey the laws*. I would humbly hope, that a thorough investigation of the real state of things, may incline you, in any future transactions of this kind, to view them with that leniency which gentlemen will always feel inclined to extend toward scientific objects, and which has been ever held to be consistent with, if not the most ennobling quality of, Justice.

And here let me pointedly assert, what is also, I understand, doubted by many, viz. that actual dissection of the human body is essential to any available anatomical knowledge. It is one of the terse remarks of the eminent anatomist whom I have before quoted, in reply to the vulgar complaint that the dead are “mangled” by Surgeons, “*Either the dead or the living must be mangled:*”—but, I believe, after what has been said before upon the connexion between Anatomy and Surgery, that it is needless to enlarge upon this point. It must be plain that books and plates cannot qualify a man to remove a stone from his neighbour’s bladder, or to lay open the fore part of his friend’s eye, and therefore I refrain from touching upon the subject.

Next comes the important question, How are subjects to be obtained? Disinterment, it is now well known, affords by far the greater number of

those used in the schools. But, surely, it is a little hard upon the profession, not only to deny to them any fair and agreeable means of procuring subjects, but after compelling them to converse with the most equivocal characters that they may procure what is absolutely necessary to them, to denounce their dealings with such men as criminal and felonious. If there had been any complaint, it might, most rationally, have been expected from us, pioneers levelling the path of life: who, while expected to be ever ready to assist our masters, whensoever their necessities require our interference, are unprovided with the principal instrument required in the work. Nay more, when we exert *ourselves*, and procure it in the best way we can, in a state scarcely fit for handling, the implement being utterly useless for any other purpose, we are rewarded with complaints and abuse. Would this were all: we are prosecuted. (*Once, we were, facetiously enough, indicted for a felony upon this score; but it need not be feared a second time: for the wit of the proceeding not happening immediately to appear, this merry conceit assumed too much the tone of malice aforethought, to render the jest expedient in future.*) But, something ought to be done to relieve the medical profession from the disgusting necessities under which it is placed. Criminals whose bodies are sentenced to dissection, afford, happily, a very inadequate supply. Instances of persons bequeathing their remains for the purposes of science are very rare. An eminent example, however, of that kind of liberality occurred lately in the metropolis, and the donor was of the Medical Profession. It has been said, Why do not Surgeons *generally* set an example of such devotedness to science? There is no justice in such a demand. As well might it be required of the clergyman, whose duty it is to compose and direct toward heaven the last thoughts of a dying criminal, that he should precede or accompany him thither. It is not under the influence of my own feelings that I deny the fairness of such a demand, but for the reasons I have stated: for might I hope to bring about a practice, which I acknowledge to be desirable, while I deny its incumbency, I would, with the utmost pleasure, put my hand to such a testament immediately. The gentleman referred to, desired that his body might be conveyed to a medical school for the benefit of the students, and having been satisfactorily examined, that it should be returned to his friends for interment. Such a laudable practice as this, need not be confined to surgeons: the public are at least *equally* interested in it; and most sincerely do I hope, that this eminent example may not want followers, either in or out of the profession. One of

this gentleman's declared objects was to recommend such a practice, and it has every thing noble and useful to recommend it.

But "they manage these things better in France." Every dead body which has lain for inspection a certain time, and is unclaimed, is sent to one or other of the schools of Anatomy, whence it is returned after proper examination enveloped in matting and ready for interment. This is an ancient custom in Paris, and a very important one. A subject is, by means of it, to be obtained for about five or six francs, and students are enabled to dissect with greater perseverance than in this country, where no subject is to be obtained for less than ten or twelve guineas. "There are unhappily," says Mr. Abernethy, "in this, as well as in other countries, numbers who die without friends or relatives to mourn their loss. If then the superintendents of prisons, poor-houses, and eleemosynary establishments, would but consent that the remains of those who die in such circumstances and are unclaimed, should be made the subjects of anatomical instruction, we should be put upon the same footing as other nations, and the obnoxious offence of disinterring the dead, would be no longer necessary, or committed." Here would be no injury to the feelings of any person; for the word "*dissection*," "*examination*" should be substituted; and it should be fully understood, that the corpse would be subsequently and decently buried. Ought not the bodies of many suicides to be so examined, and would not such a law lessen the frequency of those horrible occurrences? It is proposed above, to ask the *consent* of the superintendents of hospitals, &c.; but I believe, nothing less than a legal enactment, will relieve the profession and the public generally, from this constant source of annoyance. You are probably aware, Sir, that Mr. Peel has given notice of his intention to propose a bill to facilitate the acquisition of subjects. In what precise manner it is his intention to proceed in this untrodden path, it is impossible to presume. But proceed he most certainly will; and if ever good were to be augured from an enlightened, liberal-minded, talented senate, now is a time when we may look forward with sanguine expectation. Mr. Peel is well known to entertain the most liberal views upon the subject, and it would be strange indeed, if a gentleman so distinguished, so much a scholar, and so much a patriot, should, amid numerous wise enactments, overlook those serious obstacles, which prejudice, ignorance, and vulgarity throw in the way of medical and surgical science. Upon these hopes I would

congratulate the profession, and their patients no less, as upon a promise of a very important good. Mr. Peel, I am convinced, will never fail us, if the good sense of the country do but second his endeavours. For himself, at least, he will earn the meed of true greatness. “Homines enim ad Deos nulla re proprius accedunt, quam salutem hominibus dando.”

I believe, Sir, it is needless that I trouble you with any more observations. Should the foregoing be a cause of uneasiness to any person who peruses them, my whole justification lies in this, that there is not one which I have not felt myself bound to submit. For yourself, Mr. Mayor, men of eminent ability will, certainly, be compelled by their less gifted fellow citizens, to assume high and responsible situations: and dazzling as their elevation may be to the vulgar eye, we are assured that the cares and toils of office, are ever in proportion to its dignity and importance. None can be supposed to enjoy distinction and honour unqualified and unmixed. Of course, we hold in especial veneration the name of Mayor, connected as it is with so many grand and sublime associations. We consider, not the extent of his authority alone, but those high moral and intellectual qualifications, which are presumed to be inherent in one whose arduous office it is to fill the Corporation Chair, and dignify the civic pageant. To such an officer, and actuated by such feelings, have *I* betaken myself in my wronged and calumniated situation.

The adjudication of the past misdemeanor, but for the reasons which have been stated, would have been heard from you, and doubtless you would have inflicted some temperate punishment. You would have replied to any proposer of partiality, *I will do my duty, in spite of threats or entreaties*—and most honourable would your answer have been. Now, Sir, I myself have to perform, though an humbler, yet, a piece of duty equally imperative, if not equally important. While I profess to practice medicine and surgery it is my duty to study Anatomy, and I may reply with you, I will do *my duty* in spite of threats or of obstacles. Nay, I shall be frank enough to go a little further, and declare unequivocally, that I will study Practical Anatomy as long as I have life, and will give all possible assistance to any persons who are following the same pursuit.

I am, Mr. Mayor,

Your very humble servant,

WM. COOKE.

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Transcriber's Note

This book was written in a period when many words had not become standardized in their spelling. Words may have multiple spelling variations or inconsistent hyphenation in the text. These have been left unchanged. Misspelled words were not corrected.

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